

MASTER SERVICES AGREEMENT

This Agreement is entered into as of the Effective Date between Northwind Analytics Ltd and the Client identified in Schedule 1.

PART I

General Terms

ARTICLE I

Definitions and Interpretation

1.1 Defined Terms

Capitalised terms have the meanings given in Annex A. References to a Section are references to a Section of this Agreement unless stated otherwise.

1.2 Interpretation

Headings are for convenience only and do not affect interpretation of this Agreement.

ARTICLE IV

Term and Termination

4.1 Initial Term

This Agreement commences on the Effective Date and continues for an initial period of three years unless terminated earlier in accordance with this Article.

4.2 Termination for Cause

Either party may terminate this Agreement immediately on written notice if any of the following occurs:

(a) Material breach

A material breach of this Agreement that is not cured within thirty days of written notice describing the breach in reasonable detail.

(b) Insolvency

The other party becomes insolvent, enters administration, or has a receiver appointed over any material part of its assets.

(c) Change of control

A change of control of the other party to a direct competitor of the terminating party.

4.3 Effect of Termination

On termination the Supplier shall return or destroy all Client Confidential Information and provide reasonable transition assistance for sixty days.

PART II

Commercial Terms

1. Charges

The Client shall pay the charges set out in Schedule 1 within thirty days of invoice.

2. Expenses

Pre-approved travel expenses are reimbursed at cost without mark-up.

§ 12.1 Confidentiality

Each party shall keep the other party's Confidential Information secret and shall not disclose it except to those of its personnel who need to know it.

§ 12.2 Data Protection

The parties shall comply with all applicable data protection legislation in respect of Personal Data processed under this Agreement.

§ 12.4 Governing Law

This Agreement is governed by the laws of England and Wales, excluding its conflict of laws rules, and the parties submit to the exclusive jurisdiction of the English courts.

SCHEDULE 1

Charges and Contact Details

Fees are billed monthly in arrears against a purchase order supplied by the Client.